

Tentative Rulings
May 26, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Balouch, et al, v. Chowdhury, et al*, CIVSB2431410

Gomez Law's Motion to be Relieved as Attorney for Defendant Zumaran

5/26/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion relating to representation of Defendant Zumaran. The motion is supported by a declaration establishing good cause and the breakdown of the attorney-client relationship. (Gomez Decl.) The Court would also order the at-issue Plaintiff to appear before the Court at the next OSC re representation (to be scheduled) and inform the Court about the status of her representation and defense of the case. The relief is not effective until service of the ruling has been effectuated and that proof of service has been filed.

15. *Baker, et al, v. Chaffey Joint Union HSD., et al*, Case No. CIVSB2128630 (CIVSB2134233)

Def. District's Motion for Summary Judgment or Summary Adjudication (Baker)

Def. District's Motion for Summary Judgment or Summary Adjudication (ML)

5/26/26, 8:30 a.m., Dept. S-17

The Court notes in this matter that a Motion for Class Certification is still pending. While tentative analysis is provided, the Court plans to take arguments under consideration and issue a final ruling¹ after either the denial or granting of the certification motion with the opt-out period having been expired

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As to Requests for Judicial Notice: Within its replies, the District requested notice of the Government Claims filed by Plaintiffs Baker, Doe, and (former plaintiff) GS. The Court would **DENY** as it is improper to rely on new evidence and argument within a reply.

As to Objections: The District filed evidentiary objections to Baker/ Doe's evidence (1) Linder Decl., at ¶5, Exh. D; (2) Linder Decl., at ¶6, Exh. E; and (3) Linder Decl., at ¶11, Exh. J. The objections argue irrelevant, hearsay, improper legal conclusions, and not filed under penalty of perjury. The Court would **OVERRULE**, as Plaintiffs cured the failure to sign under penalty of perjury with their supplemental filing.

¹The MSJ seeks to adjudicate the class claims, but no ruling can be binding on a class until it is certified and the opt-out period expires. Thus, while the Court addresses its analysis and tentative, it is inclined to take arguments under submission and issue a final ruling following resolution of the class certification issue.